

Sujata Naik vs Ramahari Naik Opposite Party on 17 April, 2026

Author: Mruganka Sekhar Sahoo

Bench: Mruganka Sekhar Sahoo

IN THE HIGH COURT OF ORISSA AT CUTTACK

RVWPET No.107 of 2024

Sujata Naik Petitioner

-Versus-

Ramahari Naik Opposite Party

Advocates appeared in this case:

For Petitioner : Mr. Ramakanta Mohanty, Sr. Advocate
along with Mr. R.K. Pradhan, Advocate

For Opp. Party : Mr. R.K. Agrawal, Advocate

CORAM:

HON'BLE THE CHIEF JUSTICE

AND

THE HON'BLE MR. JUSTICE MRUGANKA SEKHAR SAHOO

JUDGMENT

----- Date of
hearing:13.03.2026:Date of Judgment: 17.04.2026

PER MRUGANKA SEKHAR SAHOO, J.

1. The review petition has been filed seeking review of the judgment dated 31.01.2024 passed by the Division Bench in appeal: MATA No.256 of 2022. Since M.S. Sahoo, J. was part of the said Bench, the matter is placed for consideration of the review petition before us, M.S. Sahoo, J. being a member, the Hon'ble Judge who was the other member of the Bench that decided the MATA being not available.

2. The learned Senior Counsel, Mr. Mohanty has been engaged to argue the review petition by the learned counsel, Mr. R.K. Pradhan who had argued the MATA.

On 27.08.2024 notices were issued in the review petition by the same Division Bench that had considered the MATA, then being available.

3. The review application has been filed under Rules 10 and 11 of Chapter-VIII of the Orissa High Court Rules read with Order-XLVII, Rule-1 of the Code of Civil Procedure. The petitioner in the review was the respondent in the MATA. The MATA was filed under Section 19(1) of the Family Courts Act, 1984 r/w section 28 of the Hindu Marriage Act, 1955 by the appellant-husband in the marriage challenging the judgment dated 18.07.2022 made by the Family Court, Baripada in C.P. No.110 of 2016.

4. The C.P. was filed by the husband in the marriage- appellant in the MATA, before the learned Judge, Family Court, Baripada for dissolution of the marriage with the respondent- wife. The said petition was registered as MAT Case No.118/295 of 2013-12 before the learned Judge, Family Court. By order dated 31.10.2016 the proceeding was dismissed on the ground of maintainability in view of the bar contained in Section 2(2) of the Hindu Marriage Act, 1955.

5. After dismissal of MAT case, C.P. No.110 of 2016 was filed invoking law as defined and contained in article/paragraph '§ 441. DIVORCE' in Mulla's Principles of Hindu Law, 13th Edition published by N.M. Tripathy, Private Limited, Bombay. The C.P. No.110 of 2016 came to be heard on merits and was dismissed by judgment dated 18.07.2022 by the learned Judge, Family Court, Baripada.

Challenging the said judgment, the petitioner-husband in the marriage filed MATA No.256 of 2022.

6. The learned Senior Counsel for the review petitioner was heard at length.

7. This Court while considering the present review petition is conscious of the judgment rendered by the Hon'ble Apex Court and the principles laid therein i.e. Tamil Nadu Electricity Board and another v. N. Raju Reddiar and another; (1997) 9 SCC 736; wherein dealing with the question whether review application can be filed after dismissal of the appeal/Special Leave Petition by another counsel who was not on record and who was not heard while dealing with the appeal/Special Leave Petition, it was held, "When an appeal/special leave petition is dismissed, except in rare cases where error of law or fact is apparent on the record, no review can be filed; that too by the Advocate-on-Record who neither appeared nor was party in the main case. It is salutary to note that the court spends valuable time in deciding a case. Review petition is not, and should not be, an attempt for hearing the matter again on merits. Unfortunately, it has become, in recent time, a practice to file such review petitions as a routine; that too, with change of counsel, without obtaining consent of the Advocate-on- Record at earlier stage."

However, taking a lenient view this Court has heard the learned Senior Counsel who was not heard when the MATA was heard and allowed.

8. The issue that falls for determination by this Court in the review petition is whether the review petitioner has made out a case for review of the judgment dated 31.01.2024 passed in MATA No.256 of 2022 by applying the parameters contained in Rules 10 and 11 of Chapter-VIII of the Orissa High

Court Rules read with Order-XLVII, Rule-1 of the Code of Civil Procedure.

The provisions of the C.P.C. are reproduced herein:

"1. Application for review of judgment.--(1) Any person considering himself aggrieved--

(a) by a decree or order from which an appeal is allowed, but from which no appeal has been preferred,

(b) by a decree or order from which no appeal is allowed, or

(c) by a decision on a reference from a Court of Small Causes, and who, from the discovery of new and important matter or evidence which, after the exercise of due diligence was not within his knowledge or could not be produced by him at the time when the decree was passed or order made, or on account of some mistake or error apparent on the face of the record or for any other sufficient reason, desires to obtain a review of the decree passed or order made against him, may apply for a review of judgment to the Court which passed the decree or made the order. (2) A party who is not appealing from a decree or order may apply for a review of judgment notwithstanding the pendency of an appeal by some other party except where the ground of such appeal is common to the applicant and the appellant, or when, being respondent, he can present to the Appellate Court the case on which he applied for the review.

[Explanation.--The fact that the decision on a question of law on which the judgment of the Court is based has been reversed or modified by the subsequent decision of a superior Court in any other case, shall not be a ground for the review of such judgment.]

2. To whom applications for review may be made.--[Rep. by the Code of Civil Procedure (Amendment) Act, 1956 (66 of 1956) s. 14.] "114. Review.--Subject as aforesaid, any person considering himself aggrieved-- (a) by a decree or order from which an appeal is allowed by this Code, but from which no appeal has been preferred. (b) by a decree or order from which no appeal is allowed by this Code, or (c) by a decision on a reference from a Court of Small Causes, may apply for a review of judgment to the Court which passed the decree or made the order, and the Court may make such order thereon as it thinks fit."

The judgment in MATA.

9. Upon detailed hearing of the appeal, the Division Bench found that there was no adjudication on merits by the learned Judge, Family Court. The Division Bench further considered the impact and implication of the bar contained in Section 2(2) of the Hindu Marriage Act, 1955. It also considered the clause (25) under Article 366 and the Article 342 of the Constitution of India.

The Division Bench was of the opinion that nothing was shown to the effect that there was a Central Government Notification to negate the bar in respect of the parties of the Scheduled Tribe. Accordingly, it was held by the Division Bench that neither of the parties to the marriage can claim any relief in terms of the provisions in the Hindu Marriage Act of 1955.

It was held that such position in law would not render either of the parties remediless and the Family Courts Act, 1984, Section 7 comes to aid of the parties as far as recourse to judicial remedy pertaining to matrimony of the parties.

10. The relevant paragraphs of the judgment in appeal those dealt with contentions raised in the MATA are reproduced herein:

"5. On query from Court he submits, custom in the Scheduled Tribe, to which his client and respondent- wife belongs is that the village elders deliberate over marital disputes. There was such a panchayat and decision made for respondent-wife to rejoin his client's society but she deliberately stayed away. In the circumstances, there should be declaration for dissolution of the marriage.

6. Mr. Pradhan, learned advocate appears on behalf of respondent-wife and submits, on the contrary it is appellant-husband who physically attacked his client because she came to know about his illicit affair with his brother's wife. He tried to kill her. She escaped to her parental home and accordingly lodged complaint, pursuant to which there was criminal case and conviction. On query from Court he submits, his client has not taken any step to prefer appeal against said judgment dated 12th September, 2019 passed by the Additional Sessions Judge, to this Court. Without prejudice he submits, the civil proceeding stood barred under section 2(2). In spite of earlier civil proceeding dismissed by reason of the bar, appellant-husband again filed the civil proceeding in abuse of the process. There should be no interference in appeal.

7. On perusal of impugned judgement it appears, there was no adjudication on merits. We reproduce below a sentence from paragraph 6 in impugned judgment.

"6. Though there is allegation and counter allegation between the parties for cruelty against each other and both the parties are residing separately since 2012 and there is no conjugal relationship between them, this court has no inherent power to pass a decree for dissolving the marriage between the parties belonging to Scheduled Tribe community."

In the circumstances, we have to first deal with the contention regarding bar under section 2(2). The provision is reproduced below.

"2. Notwithstanding anything contained in sub-section (1), nothing contained in this Act shall apply to the members of any Scheduled Tribe within the meaning of clause (25) of article 366 of the Constitution unless the Central Government, by notification

in the Official Gazette, otherwise directs." (emphasis supplied) Clause (25) under article 366 and article 342 in the Constitution of India, in that order, are reproduced below.

366(25). "Scheduled Tribes" means such tribes or tribal communities or parts of or groups within such tribes or tribal communities as are deemed under article 342 to be Scheduled Tribes for the purposes of this Constitution;

342. Schedule Tribes--(1) The President may with respect to any State or Union territory, and where it is a State, after consultation with the Governor thereof, by public notification, specify the tribes or tribal communities or parts of or groups within tribes or tribal communities which shall for the purposes of this Constitution be deemed to be Scheduled Tribes in relation to that State or Union territory, as the case may be. (2) Parliament may by law include in or exclude from the list of Scheduled Tribes specified in a notification issued under clause (1) any tribe or tribal community or part of or group within any tribe or tribal community, but save as aforesaid a notification issued under the said clause shall not be varied by any subsequent notification."

8. We have ascertained from the learned advocates for the parties that the parties belong to a Scheduled Tribe mentioned in the Presidential Order. Nothing was shown to us that there was a Central Government notification to negate the bar in respect of the parties' Scheduled Tribe. As such, the bar applies squarely inasmuch as neither of them can claim any relief in terms of provisions in the Act of 1955. However, that does not mean they or either of them are remediless.

9. Family Courts Act, 1984 by section 7 provides for jurisdiction. The provision includes territorial and subject matter jurisdiction. Matters over which family Courts have jurisdiction include jurisdiction to receive, try and determine a suit or proceeding for a declaration, inter alia, of dissolution of marriage. In providing for the jurisdiction there is no mention of any applicable law.

10. This brings us to the petition filed by appellant- husband. By it was invoked article 444 in Mulla's Principles of Hindu Law, subsequently corrected as article 441. There is no dispute before us on the parties following the Hindu way of life. The article says divorce is not known to general Hindu Law. The article, however, does provide for divorce by custom. Submission on behalf of appellant-husband is, the custom is for the village panchayat to decide. There was decision taken for respondent-wife to return to appellant-husband. Mr. Pradhan submits, on the contrary the village panchayat left the decision to be taken by the parties themselves. On query from Court he submits, his client did not return to appellant- husband thereafter.

11. View taken by the learned single Judge in Satprakash Meena (supra) is not binding on us. It is of no consequence that parties follow the Hindu way of life or therefore, in spite of them belonging to a Scheduled Tribe, can seek relief on application of provisions under the Act of 1955. The bar under section 2(2) is clear. Legislative mandate can be subject to judicial review. That said, Courts cannot overcome legislative mandate in proceeding for adjudication of a lis. The mandate can only be

interpreted by Court. We have already found that parties are not remediless by reason of the bar, as can invoke the jurisdiction provision in Family Courts Act, 1984.

12. Notwithstanding the family Court having had jurisdiction to receive, try and determine the civil proceeding of appellant-husband seeking dissolution of the marriage, as made under article 441 in Mulla's Principles of Hindu Law, said Court erred in treating the civil proceeding as invoking provisions in the Act of 1955. This obviously was at instance of respondent- wife. Said Court having had jurisdiction, ought to have gone into the merits of allegations made by appellant- husband in claiming declaration for dissolution of the marriage. In adjudicating the controversy, said Court nor we are bound by provisions in the Act of 1955. As the bar operates, therefore, the adjudication can be at best, on principles borrowed therefrom.

13. On merits we have before us documentary evidence by way of said judgment dated 12th September, 2019 made by the Additional Sessions Judge, from which respondent-wife chose not to prefer appeal to this Court. The judgment has become final. The judgment clearly says, inter alia, as have been extracted and reproduced below.

"5. I perused the LCR. That the deposition of father of the complainant Purna Chandra Naik stated in his cross-examination since 29.04.2012 the informant was residing with him. He further stated that his daughter and her husband were residing in a rented house of one Akshay Mallick of Nayapalli, Bhubaneswar. For the last time he visited to the rented house of his daughter in the month of January 2012. He admitted that he has good relationship with his son-in- law and he had never seen any disturbance between his daughter and son-in-law. Only he heard this matter from his daughter.

P.W.2 Panchamani Naik, the mother of the informant-victim she stated in her cross-examination that her son-in-law (appellant) gave respect to them and they also affectionate towards him. She further stated that she cannot say when and what happened between the informant-victim and the accused at Bhubaneswar. In the month of December, 2011 her victim daughter left Bhubaneswar and came to her house since then and her daughter remained with her in her house. After 3-4 months her daughter lodged FIR after she left Bhubaneswar.

Other prosecution witnesses not supported to the prosecution.

6. She further stated in her cross- examination that she left the house on 15.04.2012 at morning. At that time her husband was not present and he had left for duty after trying to kill her. She further stated that her husband is giving her monthly maintenance of Rs.4,000/- per month and one divorce case is also pending before the Family Court, Baripada. Now she has taken decision to divorce her husband and she further stated that her husband is only earning member of his family. The family depends upon his salary. It is crystal clear that the accused-appellant is no way involved guilty of an offence U/s 498(A) IPC."

(emphasis supplied)

14. Relying on above documentary evidence we have clear and reliable proof that respondent-wife left company of appellant-husband. While appellant- husband asserted that the village panchayat directed restitution, on behalf of respondent-wife submission was that the village panchayat left it to the parties to take their own decision. It appears, respondent-wife took decision to not return to appellant-husband. This again is borne out from said judgment, wherein the Additional Sessions Judge had recorded intention of respondent-wife, expressed that she had taken decision to divorce her husband. In the facts and circumstances, we declare the marriage solemnised on 12th May, 2009 as dissolved.

15. Keeping in mind that provisions in the Act of 1955 do not have any application to the parties and that respondent-wife admitted before the Additional Sessions Judge that appellant-husband was taking care of his parents, presently him holding rank of Assistant Sub-Inspector (ASI), we think it fit to direct him to make fixed deposit of 10,00,000/- in favour of the minor child with any nationalised bank on instruction for automatic renewal till the girl child achieves 21 years of age or gets married, whichever is earlier. Nominee on the deposit will be respondent- wife. There must also be instructions given to the bank for crediting monthly interest to account of the minor, to be opened jointly with respondent-wife. The deposit is to be made by 29th February, 2024. Appellant-husband will go on paying maintenance hereby enhanced to 5,000/- per month, co-terminus on her getting her re-married, if she does. We expect that respondent-wife will not have occasion to file for execution."

11. After hearing the learned Senior Counsel for the review petitioner, the learned counsel for the opposite parties was not called upon to answer.

Discussions, Reasoning and Conclusions of the Court in the review application:

12. In The State of West Bengal & Ors. Vs. Confederation of State Government Employees, West Bengal & Ors.: R.V.W. 159 of 2022 In WPST 102 of 2020 With C.A.N. 1 of 2022 dated 22nd September, 2022, the Division Bench of Calcutta High Court considered the review application, speaking for the Bench regarding interpretation of Order XLVII Rules- 1 and 2 of the C.P.C., one of us, Harish Tandon, J. (as His Lordship then was) observed thus:

"Upon the meaningful reading of the above quoted provisions the review is permissible provided the condition enshrined therein are fulfilled. Although the High Court enjoins the plenary powers of review while dealing under Article 226 of the Constitution of India yet the condition put forth therein needs to be looked into and the power is to be exercised within the circumference thereof. The review is permissible provided the order/decreed contained an error apparent on the face of the record or on a discovery of new and important matters or evidence which despite the exercise of due diligence was not within the knowledge of the aggrieved person, at the time of passing of the said order or decree or for any other substantial reasons. The explanation appended thereto creates a further fetter on the part of the Court

exercising review jurisdiction in not entertaining if aimed at the subsequent decision of the superior Court in any other case."

[Underlined to supply emphasis]

13. It would be apt and appropriate to quote the judgments relied upon and discussions made thereon by the Division Bench of the Calcutta High Court in State of West Bengal (supra).

"The Three Judge Bench of the Supreme Court in case of M/s. Thungabhadra Industries Ltd. Vs. The Government of Andhra Pradesh reported in AIR 1964 SC 1372 discussed the incidents which can be engulfed within the expression "error apparent on the face of the record". It is held that there is a distinction between an erroneous decision and a decision vitiated by a patent error. It is highlighted that the review jurisdiction should not be invoked and/or exercised converting itself as a court of appeal but founded upon the well sanctified parameters and at the time of exercising such jurisdiction the Court must be cautious and careful in bearing in mind the aforesaid distinction. The error can be said to be apparent on the face of the record provided the law expounded therein does not invite two possible conclusions/opinions. It is an ardent duty of the Court not to find out the error after an elaborate argument... .."

In Parsion Devi & Ors. vs. Sumitri Devi & Ors. reported in (1997) 8 SCC 715, the Apex Court in fact, propelled the exposition of law laid down in the case of Thungabhadra (Supra) and held that the error apparent on the face of the record must be self- evident and does not require to be ascertained by a process of reasoning. It is further held that the said jurisdiction can never be invoked for the purpose of mere correction of the order and upon rehearing of the entire matter, in the following:

"9. Under Order 47 Rule 1 CPC a judgment may be open to review inter alia if there is a mistake or an error apparent on the face of the record. An error which is not self-evident and has to be detected by a process of reasoning, can hardly be said to be an error apparent on the face of the record justifying the court to exercise its power of review under Order 47 Rule 1 CPC. In exercise of the jurisdiction under Order 47 Rule 1 CPC it is not permissible for an erroneous decision to be "reheard and corrected". A review petition, it must be remembered has a limited purpose and cannot be allowed to be "an appeal in disguise".

[Emphasis in original] In Haridas Das vs. Usha Rani Banik & Ors. reported in (2006) 4 SCC 78, the Apex Court held that the error or mistake appearing in Order 47 Rule 1 of the Code must not be such which is to be established by a long drawn process of reasoning upon lengthy arguments but should be self-evident in the following:

"A Constitution Bench of this Court in the case of Pandurang Dhondi Chougule v.

Maruti	Hari	Jadhav
MANU/SC/0033/1965:	[1966]	1SCR102

has held that the issue concerning res judicata is an issue of law and, therefore, there is no impediment in treating and deciding such an issue as a preliminary issue. Relying on the aforementioned judgment of the Constitution Bench, this Court has taken the view in the case of *Meharban v. Punjab Wakf Board* (supra) and *Harinder Kumar* (supra) that such like issues can be treated and decided as issues of law under Order XIV, Rule 2(2) of the Code. Similarly, the other issues concerning limitation, maintainability and Court fee could always be treated as preliminary issues as no detail evidence is required to be led. Evidence of a formal nature even with regard to preliminary issue has to be led because these issues would either create a bar in accordance with law in force or they are jurisdictional issues."

[Emphasis in original] In a recent judgment rendered by the Three Judge Bench of the Supreme Court in *S. Madhusudhan Reddy* (Supra), it is held that the power of review should not be equated with the power of an appeal. It is further held that the Court can exercise such powers for correction of a mistake but not to substitute its view taken earlier solely on the ground that there is a possibility of two views. It would be profitable to quote the observations contained in Paragraph 26 thereof which runs thus:

"26. As can be seen from the above exposition of law, it has been consistently held by this Court in several judicial pronouncements that the Court's jurisdiction of review, is not the same as that of an appeal. A judgment can be open to review if there is a mistake or an error apparent on the face of the record, but an error that has to be detected by a process of reasoning, cannot be described as an error apparent on the face of the record for the Court to exercise its powers of review under Order XLVII Rule 1 CPC. In the guise of exercising powers of review, the Court can correct a mistake but not substitute the view taken earlier merely because there is a possibility of taking two views in a matter. A judgment may also be open to review when any new or important matter of evidence has emerged after passing of the judgment, subject to the condition that such evidence was not within the knowledge of the party seeking review or could not be produced by it when the order was made despite undertaking an exercise of due diligence. There is a clear distinction between an erroneous decision as against an error apparent on the face of the record. An erroneous decision can be corrected by the Superior Court, however an error apparent on the face of the record can only be corrected by exercising review jurisdiction. Yet another circumstance referred to in Order XLVII Rule 1 for reviewing a judgment has been described as "for any other sufficient reason". The said phrase has been explained to mean "a reason sufficient on grounds, at least analogous to those specified in the rule" (Refer: *Chajju Ram V. Neki Ram* 17 and *Moran Mar Basselios Catholicos and Anr. V. Most Rev. Mar Poulouse Athanasius and Others* 18)."

[Emphasis in original]

14. Further the observation of the Division Bench of Calcutta High Court are quoted and applied in considering the present review application:

"The law that emanates from the aforesaid decision leaves no ambiguity that the power of the review is to be exercised within the limited compass. Though the substantive provision in the Code of Civil Procedure in the form of Section 114 confers power upon the Court to review its judgment, order or decree yet it does not prescribe any conditions and/or the grounds of such review. In other words Section 114 of the Code of Civil Procedure neither prescribes any condition for exercising the power of review nor creates any bridle or prohibition on the Court from exercising such powers. Logically what follows therefrom is that though the substantive provision of review is provided in the Code yet the power is to be exercised by the Court on the grounds enumerated under Order 47 Rule 1 of the Code. Although the High Court enjoins a plenary power of correcting its mistakes or the errors in a writ jurisdiction yet by virtue of the introduction of Order 47 Rule 1 of the Code it is required to be exercised bearing in mind the condition enshrined therein. The expression 'mistake' or 'error' apparent on the face of the record leaves no ambiguity on the legislative intent that such error which are self-evident and does not require a detailed examination, the detailed scrutiny, roving enquiry and/or the elucidation of the facts or the legal position, are kept outside the purview of the aforesaid expression. The said expression connotes that the mistake or error apparent on the face of record must be such which does not require a long debate or the elaborate reasoning but on a bare look of the record and the consequence to follow therefrom. Every error cannot be construed as error apparent if it does not result into an accepted decision already taken. The fringe mistake or error which is ministerial having no impact on the ultimate decision taken on a well defined reasonings, cannot be perceived an error apparent on the face of the record. There is a real and apparent distinction between an erroneous decision and the decision containing an error apparent on the face of the record. In former case the remedy available to an aggrieved person is to move higher up and the review jurisdiction cannot be invoked; on the other hand, in later case if the Court finds that the judgment under review contained patent error striking at the root of the decision the review can be the proper remedy. Though the Justice is a virtue and transcends all barriers unbridled with the rules of procedure or technicalities but there is a difference in the nature of a mistake and scope of the review as it largely depends upon the facts of the each case. The plenary powers of the Writ Court is based on equity and the fairness and the mistake of a Court should not cause prejudice to the litigants. The moment the mistake or the error is qualified with the word "apparent on the face of the record", the power is to be exercised in keeping the legislative intent and the conferment of the jurisdictions by the statutory provisions. The review jurisdiction is never equated with the appellate jurisdiction nor can be considered as an appeal in disguise. In case of an error, there is a possibility of two views and the one has been adopted it cannot come within the purview of the review jurisdiction even the Court feels the other possible views should have been taken. In such cases, it should be regarded as an

erroneous decision capable of being corrected by a higherer forum and does not come within the ambit of the review jurisdiction. The normal principle perceived in this regard is that the Court should avoid the departure from the judgment taken as it becomes final except when it is justified by the circumstances of substantial and compelling character.

[Underlined to supply emphasis]

15. In judgment dated 25.04.2022 in RVWPET No.20 of 2022 rendered by coordinate Bench of this Court (of which one of us M.S. Sahoo, J. was Member) relied upon the decision of the Hon'ble apex Court in Kamlesh Verma v. Mayawati¹. Kamlesh Verma has also been relied upon by the Division Bench of the Calcutta High Court in State of West Bengal (supra).

Kamlesh Verma (supra) has laid down scope of review by the High Court of its earlier judgment and the instances which do not come within the purview thereof. The paragraphs which are relied upon and applied for adjudication of the present review petition are reproduced herein, at paragraphs-12 to 20 of SCC the Hon'ble Supreme Court have held as follows:-

"12. This Court has repeatedly held in various judgments that the jurisdiction and scope of review is not that of an appeal and it can be entertained only if there is an error apparent on the face of the record. A mere repetition through different counsel, of old and overruled arguments, (2013) 8 SCC 320 a second trip over ineffectually covered grounds or minor mistakes of inconsequential import are obviously insufficient. This Court in Sow Chandra Kante v. Sk. Habib [(1975) 1 SCC 674 : 1975 SCC (Cri) 305 : 1975 SCC (L&S) 184 : 1975 SCC (Tax) 200] held as under : (SCC p. 675, para 1) (underlined to supply emphasis) "1. Mr Daphtary, learned counsel for the petitioners, has argued at length all the points which were urged at the earlier stage when we refused special leave thus making out that a review proceeding virtually amounts to a rehearing. May be, we were not right in refusing special leave in the first round; but, once an order has been passed by this Court, a review thereof must be subject to the rules of the game and cannot be lightly entertained. A review of a judgment is a serious step and reluctant resort to it is proper only where a glaring omission or patent mistake or like grave error has crept in earlier by judicial fallibility. A mere repetition, through different counsel, of old and overruled arguments, a second trip over ineffectually covered ground or minor mistakes of inconsequential import are obviously insufficient. The very strict need for compliance with these factors is the rationale behind the insistence of counsel's certificate which should not be a routine affair or a habitual step. It is neither fairness to the court which decided nor awareness of the precious public time lost what with a huge backlog of dockets waiting in the queue for disposal, for counsel to issue easy certificates for entertainment of review and fight over again the same battle which has been fought and lost. The Bench and the Bar, we are sure, are jointly concerned in the conservation of judicial time for maximum use. We regret to say that this case is typical of the unfortunate but frequent phenomenon of repeat performance with

the review label as passport. Nothing which we did not hear then has been heard now, except a couple of rulings on points earlier put forward. May be, as counsel now urges and then pressed, our order refusing special leave was capable of a different course. The present stage is not a virgin ground but review of an earlier order which has the normal feature of finality."

(emphasis in original)

13. In a criminal proceeding, review is permissible on the ground of an error apparent on the face of the record. A review proceeding cannot be equated with the original hearing of the case. In *Northern India Caterers (India) Ltd. v. Lt. Governor of Delhi* [(1980) 2 SCC 167 : 1980 SCC (Tax) 222], this Court, in paras 8 and 9 held as under : (SCC pp. 171-72) "8. It is well settled that a party is not entitled to seek a review of a judgment delivered by this Court merely for the purpose of a rehearing and a fresh decision of the case. The normal principle is that a judgment pronounced by the Court is final, and departure from that principle is justified only when circumstances of a substantial and compelling character make it necessary to do so: *Sajjan Singh v. State of Rajasthan* [AIR 1965 SC 845]. For instance, if the attention of the Court is not drawn to a material statutory provision during the original hearing, the Court will review its judgment: *Girdhari Lal Gupta v. D.H. Mehta* [(1971) 3 SCC 189 : 1971 SCC (Cri) 279]. The Court may also reopen its judgment if a manifest wrong has been done and it is necessary to pass an order to do full and effective justice : *O.N. Mohindroo v. District Judge, Delhi* [(1971) 3 SCC 5]. Power to review its judgments has been conferred on the Supreme Court by Article 137 of the Constitution, and that power is subject to the provisions of any law made by Parliament or the rules made under Article 145. In a civil proceeding, an application for review is entertained only on a ground mentioned in Order 47 Rule 1 of the Code of Civil Procedure, and in a criminal proceeding on the ground of an error apparent on the face of the record (Order 40 Rule 1 of the Supreme Court Rules, 1966). But whatever the nature of the proceeding, it is beyond dispute that a review proceeding cannot be equated with the original hearing of the case, and the finality of the judgment delivered by the Court will not be reconsidered except 'where a glaring omission or patent mistake or like grave error has crept in earlier by judicial fallibility' : *Sow Chandra Kante v. Sk. Habib* [(1975) 1 SCC 674 : 1975 SCC (Cri) 305 : 1975 SCC (L&S) 184 : 1975 SCC (Tax) 200].

(underlined to supply emphasis)

9. Now, besides the fact that most of the legal material so assiduously collected and placed before us by the learned Additional Solicitor General, who has now been entrusted to appear for the respondent, was never brought to our attention when the appeals were heard, we may also examine whether the judgment suffers from an error apparent on the face of the record. Such an error exists if of two or more views canvassed on the point it is possible to hold that the controversy can be said to admit of only one of them. If the view adopted by the Court in the original judgment is a possible view having regard to what the record states, it is difficult to hold that there is an error apparent on the face of the record."

(underlined to supply emphasis)

14. Review of the earlier order cannot be done unless the court is satisfied that material error, manifest on the face of the order, undermines its soundness or results in miscarriage of justice. This Court in Col. Avtar Singh Sekhon v. Union of India [1980 Supp SCC 562 : 1981 SCC (L&S) 381] held as under

: (SCC p. 566, para 12) "12. A review is not a routine procedure.

Here we resolved to hear Shri Kapil at length to remove any feeling that the party has been hurt without being heard. But we cannot review our earlier order unless satisfied that material error, manifest on the face of the order, undermines its soundness or results in miscarriage of justice. In Sow Chandra Kante v. Sk. Habib [(1975) 1 SCC 674 : 1975 SCC (Cri) 305 : 1975 SCC (L&S) 184 : 1975 SCC (Tax) 200] this Court observed : (SCC p. 675, para 1) '1. ... A review of a judgment is a serious step and reluctant resort to it is proper only where a glaring omission or patent mistake or like grave error has crept in earlier by judicial fallibility. ... The present stage is not a virgin ground but review of an earlier order which has the normal feature of finality.' "

15. An error which is not self-evident and has to be detected by a process of reasoning can hardly be said to be an error apparent on the face of the record justifying the Court to exercise its power of review. A review is by no means an appeal in disguise whereby an erroneous decision is reheard and corrected, but lies only for patent error. This Court in Parsion Devi v. Sumitri Devi [(1997) 8 SCC 715] held as under : (SCC pp. 718-19, paras 7-9) (underlined to supply emphasis) "7. It is well settled that review proceedings have to be strictly confined to the ambit and scope of Order 47 Rule 1 CPC. In Thungabhadra Industries Ltd. v. Govt. of A.P. [AIR 1964 SC 1372] this Court opined : (AIR p. 1377, para 11) '11. What, however, we are now concerned with is whether the statement in the order of September 1959 that the case did not involve any substantial question of law is an "error apparent on the face of the record". The fact that on the earlier occasion the court held on an identical state of facts that a substantial question of law arose would not per se be conclusive, for the earlier order itself might be erroneous. Similarly, even if the statement was wrong, it would not follow that it was an "error apparent on the face of the record", for there is a distinction which is real, though it might not always be capable of exposition, between a mere erroneous decision and a decision which could be characterised as vitiated by "error apparent". A review is by no means an appeal in disguise whereby an erroneous decision is reheard and corrected, but lies only for patent error.' (underlined to supply emphasis)

8. Again, in Meera Bhanja v. Nirmala Kumari Choudhury [(1995) 1 SCC 170] while quoting with approval a passage from Aribam Tuleswar Sharma v. Aribam Pishak Sharma [(1979) 4 SCC 389] this Court once again held that review proceedings are not by way of an appeal and have to be strictly confined to the scope and ambit of Order 47 Rule 1 CPC.

9. Under Order 47 Rule 1 CPC a judgment may be open to review inter alia if there is a mistake or an error apparent on the face of the record. An error which is not self-evident and has to be detected by a process of reasoning, can hardly be said to be an error apparent on the face of the record justifying the court to exercise its power of review under Order 47 Rule 1 CPC. In exercise of the jurisdiction under Order 47 Rule 1 CPC it is not permissible for an erroneous decision to be 'reheard and

corrected'. A review petition, it must be remembered has a limited purpose and cannot be allowed to be 'an appeal in disguise'."

(emphasis in original)

16. Error contemplated under the Rule must be such which is apparent on the face of the record and not an error which has to be fished out and searched. It must be an error of inadvertence. The power of review can be exercised for correction of a mistake but not to substitute a view. The mere possibility of two views on the subject is not a ground for review. This Court, in Lily Thomas v. Union of India [(2000) 6 SCC 224 : 2000 SCC (Cri) 1056] held as under : (SCC pp. 250-53, paras 54, 56 & 58) (underlined to supply emphasis) xxx xxx xxx

56. It follows, therefore, that the power of review can be exercised for correction of a mistake but not to substitute a view. Such powers can be exercised within the limits of the statute dealing with the exercise of power. The review cannot be treated like an appeal in disguise. The mere possibility of two views on the subject is not a ground for review. Once a review petition is dismissed no further petition of review can be entertained. The rule of law of following the practice of the binding nature of the larger Benches and not taking different views by the Benches of coordinated jurisdiction of equal strength has to be followed and practised. However, this Court in exercise of its powers under Article 136 or Article 32 of the Constitution and upon satisfaction that the earlier judgments have resulted in deprivation of fundamental rights of a citizen or rights created under any other statute, can take a different view notwithstanding the earlier judgment.

17. In a review petition, it is not open to the Court to reappreciate the evidence and reach a different conclusion, even if that is possible. Conclusion arrived at on appreciation of evidence cannot be assailed in a review petition unless it is shown that there is an error apparent on the face of the record or for some reason akin thereto. This Court in Kerala SEB v. Hitech Electrothermics & Hydropower Ltd. [(2005) 6 SCC 651] held as under : (SCC p. 656, para 10) "10. ... In a review petition it is not open to this Court to reappreciate the evidence and reach a different conclusion, even if that is possible. The learned counsel for the Board at best sought to impress us that the correspondence exchanged between the parties did not support the conclusion reached by this Court. We are afraid such a submission cannot be permitted to be advanced in a review petition. The appreciation of evidence on record is fully within the domain of the appellate court. If on appreciation of the evidence produced, the court records a finding of fact and reaches a conclusion, that conclusion cannot be assailed in a review petition unless it is shown that there is an error apparent on the face of the record or for some reason akin thereto. It has not been contended before us that there is any error apparent on the face of the record. To permit the review petitioner to argue on a question of appreciation of evidence would amount to converting a review petition into an appeal in disguise."

(underlined to supply emphasis)

18. Review is not rehearing of an original matter. The power of review cannot be confused with appellate power which enables a superior court to correct all errors committed by a subordinate court. A repetition of old and overruled argument is not enough to reopen concluded adjudications. This Court in *Jain Studios Ltd. v. Shin Satellite Public Co. Ltd.* [(2006) 5 SCC 501] , held as under : (SCC pp. 504-505, paras 11-12) (underlined to supply emphasis)

19. Review proceedings are not by way of an appeal and have to be strictly confined to the scope and ambit of Order 47 Rule 1 CPC. In review jurisdiction, mere disagreement with the view of the judgment cannot be the ground for invoking the same. As long as the point is already dealt with and answered, the parties are not entitled to challenge the impugned judgment in the guise that an alternative view is possible under the review jurisdiction.

20. Thus, in view of the above, the following grounds of review are maintainable as stipulated by the statute:

20.1. When the review will be maintainable:

(i) Discovery of new and important matter or evidence which, after the exercise of due diligence, was not within knowledge of the petitioner or could not be produced by him;

(ii) Mistake or error apparent on the face of the record;

(iii) Any other sufficient reason. The words "any other sufficient reason" have been interpreted in *Chhajju Ram v. Neki* [(1921-22) 49 IA 144 : (1922) 16 LW 37 : AIR 1922 PC 112] and approved by this Court in *Moran Mar Basselios Catholicos v. Most Rev. Mar Poulouse Athanasius* [AIR 1954 SC 526 : (1955) 1 SCR 520] to mean "a reason sufficient on grounds at least analogous to those specified in the rule". The same principles have been reiterated in *Union of India v. Sandur Manganese & Iron Ores Ltd.* [(2013) 8 SCC 337 : JT (2013) 8 SC 275]

(i) A repetition of old and overruled argument is not enough to reopen concluded adjudications.

(ii) Minor mistakes of inconsequential import.

(iii) Review proceedings cannot be equated with the original hearing of the case.

(iv) Review is not maintainable unless the material error, manifest on the face of the order, undermines its soundness or results in miscarriage of justice.

(v) A review is by no means an appeal in disguise whereby an erroneous decision is reheard and corrected but lies only for patent error.

- (vi) The mere possibility of two views on the subject cannot be a ground for review.
- (vii) The error apparent on the face of the record should not be an error which has to be fished out and searched.
- (viii) The appreciation of evidence on record is fully within the domain of the appellate court, it cannot be permitted to be advanced in the review petition.
- (ix) Review is not maintainable when the same relief sought at the time of arguing the main matter had been negated."

(underlined to supply emphasis)

16. The principles laid down in Kamlesh Verma (supra), have been subsequently reiterated by the Hon'ble Supreme Court in several judgments, some of the latest being Sunil Vasudeva & others vrs. Sundar Gupta & others², Yashwant Sinha & others vrs. Central Bureau of Investigation through its Director and another³.

17. Keeping in view the principles which have been laid down in Kamlesh (supra) at paragraphs 20.1 and 20.2, the contentions raised in the review petition are to be considered to arrive at a conclusion whether a case has been made out for reviewing judgment dated 10.01.2025. Accordingly, each of the grounds taken by the petitioner are reproduced and discussed.

(I) there is no material whatsoever before the Division Bench regarding the customs among the parties for divorce. Therefore the direction to the Family Court to exercise jurisdiction vested in it U/s. 7 of the Family Courts Act, 1984 in respect of the proceeding as made by the husband under Article 441 of the Mulla's Principles of Hindu Law (13th Edition published by N.M. Tripathy, Bombay) is a material error apparent on the face of the record.

(II) The review petitioner-respondent in the MATA- respondent in the C.P. was made to leave separately owing to the harassment meted out to her. She has also denied the allegation of husband that she is not (2019) 17 SCC 385 (2020) 2 SCC 338 ready and willing to return back to the company and society of the husband.

(III) The appellate court in the MATA had noted the deposition of the parents of the wife in the C.P. No.110 of 2016 incorrectly as it recorded that the wife took the decision not to return to the husband and she had taken decision to divorce her husband. (IV) The reliance of the appellate court in the MATA on the deposition of the father of the wife is erroneous. (V) The appellate court in the MATA gave two factual findings: about wife taking a decision not to return the society of the husband and the local customs prevailing in the Scheduled Tribe community within the State of Odisha governing their marriage and divorce which leads to the basis of annulling the marriage between the parties is factual error apparent on the face of record.

(VI) There is absence of pleadings of the parties in the C.P. Therefore the conclusions by the appellate court in the MATA is apparent error.

18. The contentions raised seeking review as noted in paragraph 18(I) have been inter alia argued and considered by the Division Bench in the appeal. Therefore it amounts to the re-argument of a rejected contention though the learned Senior Advocate has portrayed it to be a material error apparent on the face of the record. Paragraphs 10 and 11 of the judgment in MATA which has been reproduced at paragraph 10 above would indicate that the argument advanced in the review was argued before the Division Bench in Appeal, it has been considered and rejected. 18.1 Therefore in view of the principle enunciated at paragraphs 20.2(i) and (iii) of Kamlesh (supra) the contentions raised have to be rejected and cannot be a ground for review of the judgment in appeal. 18.2 The contentions seeking review as culled out and noted above in paragraphs 18(II), (III), (IV) and (V) are mixed questions of fact and law which cannot be reconsidered while exercising the review jurisdiction as review by no means is an appeal in disguise. Assuming that the Division Bench in appeal erroneously appreciated the facts but that cannot be a ground for review, though, possibly may be a ground in appeal before the higher court. 18.3 The contentions raised as noted in paragraph 18(VI) amounts to re-appreciation of the argument advanced in appeal which cannot be resorted to for reviewing the judgment.

18.4 Submissions made inter alia suggest that the judgment passed by the Division Bench is erroneous. Assuming that the said submission is correct, the review will not be maintainable as held in Kamlesh (supra), para- 20.2(ii)(v) that a review is by no means an appeal in disguise whereby an erroneous decision is reheard and corrected. The arguments were considered and overruled by the Division Bench and such plea raised again is not enough to reopen the concluded adjudication.

19. Some of the grounds as contended in the review application culled out and noted above deal with factual aspects dealt with by the learned Family Court. The said factual aspects have been considered by the Division Bench in challenge and have been decided. Therefore, the said grounds would not come to the aid of the review petitioner as it would amount to reappreciation of evidence on record. The relief as sought at the time of arguing the appeal: MATA, which have been negated cannot be reconsidered.

19.1 Further in our considered view the suggested grounds seeking review, in any view of the matter are not errors manifest on the judgment and they do not undermine soundness of the judgment rendered by the Division Bench in the writ application.

20. Apart from the fact that we do not find any material error manifest on the face of the order in the writ application we cannot 'revisit' the judgment by the matter being 'reargued' before us in review.

21. In view of the discussions made above, the review application being devoid of any merit is dismissed.

No costs.

I agree.

(HARISH TANDON)
CHIEF JUSTICE

(MRUGANKA SEKHAR SAHOO)
JUDGE

MAJHEEHigh Court, Cuttack

Reason: Authentication The 17th April, 2026/Jyostna/Rajesh Location: OHC Date: 17-Apr-2026
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